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Law on Animal Husbandry and Animal Products

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FAIRS Subject Report

SP2 - Prevent or Resolve Barriers to Trade that Hinder U.S. Food and Agricultural Exports

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Report Highlights:

This report contains an unofficial translation of [Law No. 2005-95](#) of October 18, 2005 on Animal Husbandry and Animal Products. The law's scope include imported animals, animal products, and animal feed, but does not extend to aquaculture. Where known, the law's relevant implementing decrees and orders have been footnoted. Tunisian imports of products regulated by this law totals \$600 million, including \$10-40 million from the United States. Feed and feed ingredients account for over two-thirds of current trade while market access for animal products remains limited by tariff and non-tariff barriers.

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Law No. 2005-95 of 18 October 2005 on Animal Husbandry and Animal Products^{1,2}

In the name of the people,
The Chamber of Deputies having adopted,
The President of the Republic promulgates the Law whose content follows:

Title I: General Provisions and Definitions

Art. 1- This Law aims to:

- the organization of the animal husbandry sector,
- the assurance of genetic improvement of the herd and the increase of its productivity,
- the preservation of local genetic resources
- the preservation and diversification of animal feed sources,
- the preservation of the herd and its health protection,
- the development of animal products and the assurance of their quality and safety.

Art. 2- For the purposes of this Law, the following definitions shall apply:

- **animal husbandry**: the raising of walking animals for economic, cultural, sporting or social purposes,
- **herd**: all categories of domestic or tamed walking animals of the same species, normally raised in Tunisia, and in particular bovine, ovine, caprine, camelids, equine, poultry, and small animals.
- **farmer/rancher**: any person or corporation practicing animal husbandry as a principal activity or integrated with other agricultural activities
- **agents specialized in animal husbandry**: persons who have undergone scientific training and specific vocational training in animal husbandry techniques in official institutions,
- **purebred animals**: any animal whose characteristics conform to the technical and shape standards of a given line and ascending on a particular herd-book,
- **local genetic resources**: all the lineages and groups of animals existing in the country and exploited for economic or heritage purposes,
- **local animal varieties**: the species of local, ancient, stable and well-known animals existing in Tunisia,
- **genetic improvement**: the increase of the hereditary capacities of the animals by using the different techniques adopted in the matter,
- **animal semen**: the liquid released from the genital and insemination system after its collection, treatment and conditioning,
- **natural procreation**: the connection between male and female animal species for procreation,
- **embryo**: the result of growth, distinction and development of a fertilized egg,
- **herd-book**: a complete book identifying the animal through the registration of its number with the name and number of its ancestors,
- **anabolic product**: any product helping to transform food products into products serving to constitute and renovate the body tissues,
- **doping product**: any product likely to strengthen the physical or physiological capacities or cause damage to any of the physiological functions of the body,
- **animal feeds**: all plant products, crop residues, and agricultural and industrial products used for animal feed, whether produced or extracted from other authorized sources,

¹ As later amended by [Law No 2007-54](#) of August 8, 2007, relating to anti-doping in sport.

² Preparatory work: debate and adoption by the Chamber of Deputies in its meeting of 26 September 2005.

- **compound feed:** mixtures consisting of fresh or preserved natural plant and animal products and their industrial by-products, as well as natural organic materials, whether or not containing additives, used to feed animal through its mouth in the form of complete or complementary feed,
- **animal health protection:** all ad hoc or generalized measures aimed to heal, prevent, and control the intrusion of recent and regulated animal diseases,
- **regulated animal diseases:** any disease subject to veterinary sanitary regulations and requiring special protection in view of the great contagion and economic loss arising from it in addition to its transferability to humans,
- **sanitary mandate:** the authorization granted by the competent authority to veterinarians to practice the sanitary operations of his competence,
- **health monitoring and surveillance network:** all persons and structured organizations carrying out epidemiological surveillance in all or part of the national territory of one or more animal diseases throughout the territory or within a delineated geographical area,
- **redhibitory defects:** defects and diseases hidden during the sale or exchange of animals and which imply nullity of sale or exchange,
- **animals for meat production:** animals intended for the production of red meat,
- **slaughterhouse for poultry and small animals:** premises approved by the competent authority, used for the slaughtering and preparation of poultry meat and domestic lagomorphs intended for human consumption,
- **slaughterhouse:** any public or private establishment established in accordance with this Law and intended for the slaughter and processing of slaughtered animals and the meat and offal of which are intended for human consumption,
- **sanitary stamp:** seal stamped on the carcasses and meat and their packaging attesting their safety for human consumption,
- **illegal slaughter:** slaughtering outside slaughterhouses, subject to the exceptions provided for by this Law,
- **traceability:** operation consisting of tracing in space and time the route of an animal or animal product from birth to its slaughter or consumption and the collection of data on their origin,
- **animal products:** products obtained from animals and products derived from them, intended for human consumption, including live animals when prepared for this purpose,
- **competent authority:** the competent departments and bodies under the ministry in charge of agriculture and all other bodies authorized by the laws and regulations in force.

Title II: Genetic Improvement of the Herd

Chapter I: Genetic Improvement and Protection of Local Genetic Resources

Art.3 – Centers for breeding purebred animals for the production of high quality and high productivity females and sires may be established in accordance with a book of specifications approved by orders^{3,4,5}

Art.4- Local animal species may be crossed with other imported species, semen or embryos, with higher productivity and meeting veterinary sanitary conditions.

³ [Order of the Minister of Agriculture and Water Resources dated 15 June 2007](#), approving the specifications relating to the establishment of bovine pure-bred sires breeding centers for the production of good quality sires with higher productivity.

⁴ [Order of the Minister of Agriculture and Water Resources dated 1 October 2007](#), approving the specifications relating to the establishment of breeding centers of purebred begetters of the ovine and caprine races for the production of good quality and high productivity females and begetters.

⁵ [Order of the Minister of Agriculture and Water Resources dated 3 March 2008](#), approving the specifications relating to the establishment of breeding centers for female and male breeder of rabbits for the reproduction of sires and females of good quality and higher productivity, annexed to the order herein

Section I - Natural Outcrop

Art.5- A book of stallions for natural procreation ([studbook](#)) is created whose form and contents are fixed by order⁶ of the minister in charge of agriculture to be put at the disposal of the farmer/rancher wishing to acquire stallions. The activity of natural projection to the public is carried out in specialized centers created in accordance with a book of specifications approved by order⁷ of the minister in charge of agriculture.

Section II - Artificial Insemination

Art.6- Animal semen may be used for artificial insemination only if they originate from high-value, purebred sires, known by reference to data relating to ascending and descending animals and free from all animal diseases, and in particular regulated animal diseases and hereditary defects that can lead to disease. The producer of semen, his importer or his distributor must prove this by the official documents and the different scientific processes. Animal semen are subjected to laboratory analyzes to verify the technical characteristics and the sanitary conditions they must fulfill. The minister in charge of agriculture designates a public laboratory where these analyzes will be carried out. The technical characteristics and the sanitary conditions of the animal semen are fixed by order⁸ of the minister in charge of agriculture.

Art.7- Artificial insemination centers may be established for the production of animal semen or their use for insemination or for the accomplishment of both operations at once. These centers must be created in accordance with a book of specifications that sets out the procedures for collecting animal semen, their packaging, preservation, processing and use for insemination and approved by order⁹ of the minister in charge of agriculture. However, the production of animal semen for scientific research and pilot experiments is subject to specific conditions to be set, on a case-by-case basis, by the minister in charge of agriculture.

Section III - Embryo Transfer

Art.8- The technique of transferring embryos to improve the quality of the herd or the safeguarding of the national animal genetic heritage can be used. The production and transfer of embryos must be carried out in specialized centers. These centers are created in accordance with a book of specifications approved by order¹⁰ of the minister in charge of agriculture.

Chapter II: Genealogical Books

Art.9- A genealogical book (herd-book) specific to each animal breed line is created. This book contains the unique identifier of the animal, its origins and all of its own technical data. The animal breed lines concerned by the genealogical books, the configuration of these books, their contents and the conditions of registration are fixed by order¹¹ of the minister in charge of agriculture.

⁶ [Order of the Minister of Agriculture and Water Resources, dated 31 March 2008](#), fixing the form and content of the guide of the begetter of natural procreation

⁷ [Order of the Minister of Agriculture and Water Resources, dated 27 December 2007](#), approving the specifications relating to the creation of specialized centers in practicing the activity of natural procreation of cows in public

⁸ [Decree No 2001-398 of 6 February 2001](#), relative to activities at bovine artificial insemination centers

⁹ [Order of the Minister of Agriculture and Water Resources, dated 12 February 2001](#), approving bovine artificial insemination centers

¹⁰ [Order of the Minister of Agriculture and Water Resources dated 21 October 2006](#), approving the specifications for the establishment of production and transfer centers for bovine embryos

¹¹ [Order of the Minister of Agriculture and Water Resources, dated 31 March 2008](#), fixing the breeds concerned by the genealogical books, their configuration, contents and the registration conditions

Chapter III: Animal Identification

Art.10 - The competent authority orders the identification of animals, of which the list is fixed by order^{12,13} of the minister in charge of agriculture. The registers of the identification and its procedure are fixed by orders^{14,15} of the minister in charge of agriculture.

Chapter IV: Supervision of Animal Productivity

Art.11- The specialized institutions under the ministry in charge of agriculture supervise animal productivity. Specialized centers within the supervision of animal productivity can be created according to a book of specifications agreed by orders^{16,17,18,19,20} of the minister in charge of agriculture.

Chapter V: Animal Husbandry of Purebred Horses

Art.12- The institution in charge of genetic improvement and breeding of horse breeds shall keep a special register for all breeds of horse lines recognized by the competent authority, including the names of the horses, their pedigrees and all related indications (stud-book). The form of this register, its content and the conditions of registration are set by order²¹ of the minister in charge of agriculture.

Art.13 - The horses are defined by a written and character description made by agents authorized by the institution in charge of the improvement and the breeding of horse breeds. A complementary definition can be made by genetic analysis or by placing a numbered tag. After the definition and registration of any horse on the special register to his race, his owner receives services from the institution mentioned, an accompanying document whose characteristics and content are set by order²² of the minister in charge of agriculture. The horse must be provided with the accompanying document during all his travels or transfer for a fee or free. The accompanying document must be returned to the institution responsible for the improvement and breeding of horse breeds, in case of death of the horse.

Art.14- The horses procreate themselves by natural procreation from stallions approved by a technical commission.

¹² [Order of the Minister of Agriculture and the Environment dated 9 December 2011](#), fixing the list of animals concerned by identification

¹³ [Order of the Minister of Agriculture, Water Resources and Fisheries dated 3 November 2015](#), fixing the list of animals concerned by identification

¹⁴ [Order of the Minister of Agriculture, Water Resources and Fishing dated 20 September 2010](#), fixing the registers of animals identification and the procedure of the identification

¹⁵ [Order of the Minister of Agriculture, Water Resources and Fisheries of December 31, 2015](#), amending and supplementing the Order of September 20, 2010, setting the records of the identification of animals and the procedure of identification.

¹⁶ [Order of the Minister of Agriculture and Water Resources dated 29 November 2008](#), approving the specifications related to the establishment of the specialized centers in the control of the productivity of the milk of sheep and goats.

¹⁷ [Order of the Minister of Agriculture and Water Resources dated 29 November 2008](#), approving the specifications related to the establishment of the specialized centers in the control of the productivity of the milk of bovine

¹⁸ [Order of the Minister of Agriculture and Water Resources dated 29 November 2008](#), approving the specifications related to the establishment of the specialized centers in the control of growth of sheep and goats

¹⁹ [Order of the Minister of Agriculture, Water Resources and Fisheries dated 28 February 2017](#), approving the specifications for the establishment of snail breeding centers

²⁰ [Order of the Minister of Agriculture, Water Resources and Fisheries dated 31 July 2017](#), amending the Order of 28 February 2017, approving the specifications for the creation of snail breeding centers

²¹ [Order of the Minister of Agriculture dated 24 September 2014](#), relating to the form, contents and conditions of registration to the register of horses lineages

²² [Order of the Minister of Agriculture and Water Resources of 17 March 2007](#), fixing the characteristics and the contents of the document accompanying the horse.

Artificial insemination is carried out by the use of animal semen from broodstock approved by the same commission in the lines fixed by order²³ of the minister in charge of agriculture after opinion of the same commission and in accordance with a book of specifications approved by order of the minister in charge of agriculture. The use of broodstock and animal semen from unapproved broodstock is prohibited.

Art.15- Repealed by [Law No 2007-54](#)²⁴ of August 8th, 2007, relating to anti-doping in sport.

Chapter VI: Organization of the Poultry and Small Animals Sector

Art.16- A master plan for the establishment of poultry establishments and small animals is fixed by decree. The creation of these establishments is carried out in accordance with a book of specification setting the technical, environmental and sanitary data required approved by order²⁵ of the minister in charge of agriculture. The list of small animals concerned by the provisions of this article is fixed by order²⁶ of the minister in charge of agriculture.

Title III: Organization of Rangeland and Animal Feed

Chapter I: Organization of Rangeland

Art.17- Subject to the legislation in force and relating to forest and natural rangelands, rangelands may be used only for the production of fodder products either naturally or by way of improvement. The competent forestry and rangeland services delineate pastoral lands.

Chapter II: Animal Feed

Art.18- The production of manufactured animal feed is subject to technical conditions laid down by a book of specifications approved by joint orders^{27,28} of the ministers in charge of agriculture, public health and industry. Animal feed cannot be manufactured with products that cannot be used or marketed. The list of the products whose use is authorized is fixed by joint order²⁹ of the ministers in charge of agriculture and the public health.

²³ [Order of the Minister of Agriculture and Water Resources of March 17, 2007](#), fixing the lines of horses used in artificial insemination

²⁴ [Order of the Minister of Youth, Sports and Physical Education, the Minister of Agriculture and Water Resources and the Minister of Public Health dated 2 March 2009](#), fixing the list of the prohibited substances and methods for the horses used in the equestrian sports and horse-races

²⁵ [Order of the Minister of Agriculture and Water Resources dated 21 October 2006](#), approving the specifications setting standards for livestock buildings and their equipment

²⁶ [Order of the Minister of Agriculture and Water Resources dated 9 August 2007](#), fixing the list of small animals.

²⁷ [Order of the Minister of Agriculture and Water Resources, the Minister of Public Health and the Minister of Industry, Energy and Small and Medium Enterprises of April 6, 2007](#), approving the technical specifications of the production of transformed animal feed

²⁸ [Order of the Minister of Agriculture, Water Resources and Fisheries, the Minister of Health and the Minister of Industry dated 18 March 2016](#), approving the amendment of the technical specifications for the production of processed animal feed , as approved by Order of the Minister of Agriculture and Water Resources, the Minister of Public Health and the Minister of Industry, Energy and Small and Medium Enterprises of April 6, 2007

²⁹ [Order of the Minister of Agriculture and Water Resources and the Minister of Public Health dated 9 July 2009](#), fixing the list of the products which use is authorized for the manufacturing of animal feed

Art.19- Animal feed may be mixed with additives provided that the physiological and chemical accommodation between the components of the mixture is respected in accordance with the desired objectives. The list of feed additives, their content and the modalities of their use are set by joint order³⁰ of the ministers in charge of agriculture and public health.

Chapter III: Fodder Products

Art.20- For certain fodder products and during periods of under-production or under-distribution, exceptional measures may be taken to ensure the animal feed needs in all regions of the country.

Art.21- Control of feeds and their components including residues and pollutants in all stages through which these products pass. Control procedures and tolerated variations between the results of the analysis and the declared levels are set by order³¹ of the ministers in charge of agriculture, trade and public health. Specialized laboratories perform animal feed analysis to verify compliance with special forage standards. These laboratories are created in accordance with a book of specifications approved by order³² of the ministers in charge of agriculture and public health. An accredited central laboratory is created^{33,34} to perform the analysis that the specialized administrative services entrust to it, including the control of the production, the importation of animal feed, and the verification of their compliance with the required standards of quality, wholesomeness, and health.

Title IV: Animal Health Protection

Chapter I: Support for Animal Health

Art.22- Buildings of animal husbandry and their equipment must be designed and equipped to ensure the animal's wellbeing, cleanliness and ease of movement. The standards relating to the buildings and equipment referred to in paragraph 1 of this article are set in accordance with a book of specifications approved by order³⁵ of the minister in charge of agriculture.

Art.23- Surveillance and permanent sanitary control of herds can be created³⁶, in particular to:

- intercept the spread of animal diseases that are outside and threaten to enter the national territory,
- detect new and recent diseases, follow their evolution and order preventive measures for forward control,
- to assess the importance of the health and economic consequences of animal diseases and their classification according to priorities,
- to assess the real danger of diseases based on the number of registered cases, the geographical area concerned, the economic losses suffered or possible, and the possible impact on public health,
- follow the national programs in matters of fighting against animal diseases,

³⁰ [Joint order of the Minister of Agriculture and Water Resources and the Minister of Public Health dated 27 December, 2006](#), fixing the list of additives to cattle feed, their content and using methods

³¹ [Joint Order of the Minister of Agriculture and Water Resources, the Minister of Trade and Handicrafts and the Minister of Public Health dated 22 November 2006](#), setting out the procedures for the control of feedstuffs and the tolerated variations between the results analyzes and reported rates.

³² [Joint order of the Minister of Agriculture and Water Resources and the Minister of Public Health dated 12 December 2007](#), approving the specifications for creating specialized laboratory in analyzing the cattle feed, to verify their conformity to the specified norms to fodder products

³³ [Decree n° 2007-237, dated 5 February 2007](#), fixing the financial and administrative organization of the Central Laboratory of Animal Feed Analyses

³⁴ [Decree n° 2008-3614, dated 21 November 2008](#), completing decree n° 2007-237 dated 5 February 2007, fixing the financial and administrative organization of the Central Laboratory of Animal Feed Analyses

³⁵ [Order of the Minister of Agriculture and Water Resources dated 21 October 2006](#), approving the specifications setting the standards for livestock buildings and equipment.

³⁶ [Decree n° 2007-1015 dated 24 April 2007](#), creating a national center of animal health surveillance and fixing its administrative and financial organization as well as its functioning methods

The perimeter boundary of surveillance intervention and permanent sanitary control, the stakeholders, and the distribution of roles between them, are set by order of the minister in charge of agriculture.

Art.24- A fee may be granted to veterinary practitioners for carrying out the sanitary operations provided for by this Law in respect to the sanitary mandate. The sanitary mandate gives the status of public official to its holder to carry out exclusively the missions entrusted to veterinarians of the public sector. The conditions for granting the sanitary mandate are set by order of the minister in charge of agriculture. Consideration for the sanitary mandate is set by joint order³⁷ of the ministers in charge of agriculture and finance.

Art.25- Prophylactic health programs and campaigns may be declared obligatory in case of enlargement of areas where it has been proved that any animal disease has affected more than one governorate. This declaration is made by decision of the minister in charge of agriculture.

Art.26- The control of regulated animal diseases is obligatory and is carried out under the control of the competent animal health authority. When control operations require the slaughter of the animal, compensation may be provided to the damaged in accordance with conditions set by joint order of the ministers in charge of finance and agriculture.

Chapter II: Regulated Animal Diseases

Art.27- Raised animals must be free from all regulated animal diseases. Regulated animal diseases include all animal diseases that are characterized by the rapidity of their contagion or the extent of the economic losses they generate or the possibility of their transmission to humans. The list of these diseases and the general counter-measures are fixed by decree^{38,39}. However, and, if necessary, urgent control measures may be taken.

Art.28- It is forbidden for any owner, farmer/rancher, or merchants of animals:

1. to allow, despite the sanitary prohibitions, animals that he knows are affected by a regulated animal disease, to come into contact with healthy animals,
2. to market animals that he knows have a regulated animal disease,
3. to leave dead animals with a regulated animal disease on the farm or on the public road without taking any measures necessary to prevent the spread of contagion,
4. to cause the occurrence of a regulated animal disease or to transmit it to healthy animals, knowingly,
5. to import animals or animal products that are known to be affected by a regulated animal disease.

Art 29 - The official veterinary services shall issue to animal owners and farmers/ranchers, at their request, health certificates indicating that their herds are free from regulated animal diseases. The content of these certificates and the conditions for granting them are set by order of the minister in charge of agriculture.

Art.30- Veterinary tests are carried out in laboratories created in accordance with the legislation in force. The analysis ordered by the competent veterinary authority in the context of its prerogative to the control and fight against animal disease, are carried out in official laboratories of veterinary analysis whose list is fixed by order⁴⁰ of the minister in charge of agriculture.

³⁷ [Order of the Minister of Agriculture and the Minister of Finance dated 6 September 2013](#), fixing the amount of remuneration allocated to the sanitary mandate

³⁸ [Decree n° 2009-2200 dated 14 July 2009](#), fixing the nomenclature of controlled animal diseases and decreeing the general measures applicable to these diseases

³⁹ [Decree n° 2010-1207 dated 24 May 2010](#), completing decree n° 2009-2200 dated 14 July 2009, fixing the nomenclature of the regulated animal diseases and decreeing the general measures applicable to these diseases

⁴⁰ [Order of the Minister of Agriculture, Water Resources and Fishing dated 25 August 2010](#), fixing the list of the official analyses laboratories of medical veterinary biology

Title V: Animals and Animal Products

Art.31- Subject to the legislation in force, establishments of any category of production, processing and packaging of animal products are subject to the sanitary control of the veterinary services under the minister in charge of agriculture. The methods of sanitary control of these establishments and their granting of sanitary approval are fixed by order^{41,42} of the minister in charge of agriculture. Animals and animal products may be subject to the conditions of traceability. The animals and animal products concerned and the methods of their traceability are set by order^{43,44} of the ministers in charge of agriculture and public health.

Chapter I: Animal Transport

Art. 32 - Animals subject to the identification procedures must be provided an attestation of identification. The transport must be carried out in accordance with technical and sanitary conditions set by order⁴⁵ of the minister in charge of agriculture. The minister in charge of agriculture may also, by order⁴⁶, establish special technical and sanitary conditions for the transport of animals other than the species referred to in this Article, and in particular, poultry and small animals and their products.

Art. 33 - Marketplaces for animals are subject to veterinary sanitary control in accordance with the legislation in force.

Art. 34 - Redhibitory defects are sanctioned by the nullity of the sale or the exchange and by the guarantee of the resulting damage as long as the seller and the buyer or the traders do not agree on the contrary. The following diseases and defects are considered to be redhibitory:

1- For equines:

- immobility,
- pulmonary emphysema,
- chronic cornea,
- tic,
- lameness,
- uveitis,
- infectious anemia.

2- for bovine, ovine, and caprine:

- Tuberculosis,
- Brucellosis,
- Enzootic leucosis.

⁴¹ [Order of the Minister of Agriculture and Water Resources dated 26 May 2006](#), fixing the methods of the veterinary health control, the conditions and procedures of granting health approval of the establishments of production, transformation and conditioning of animal products

⁴² [Order of the Minister of Agriculture dated 27 January 2014](#), amending and completing the order of the Minister of Agriculture and Water Resources dated 26 May 2006 fixing the methods of the veterinary health control, the conditions and procedures of granting health approval of the establishments of production, transformation and conditioning of animal products

⁴³ [Order of the Minister of Agriculture and the Minister of Health dated 31 May 2012](#), fixing the list of the animals concerned with traceability and their products as well as its operating methods

⁴⁴ [Order of the Minister of Agriculture and the Minister of Health dated 31 May 2012](#), fixing the traceability specific system of the cattle and their meat

⁴⁵ [Order of the Minister of Agriculture, Water Resources and Fishing dated 1 November 2007](#), fixing the technical and health conditions for the transport of the livestock concerned with the identification program

⁴⁶ [Order of the Minister of Agriculture, Water Resources and Fishing dated 7 October 2010](#), fixing the technical and sanitary conditions for the transport of poultries, small animals as well as their products

Chapter II: Slaughter of Animals and Meat

Section I - Slaughter of Animals and Slaughterhouses

Art. 35 – Animals for meat production must be slaughtered in slaughterhouses established in accordance with a master plan for slaughterhouses approved by decree⁴⁷. However, animals may be slaughtered outside legally established slaughterhouses and butcheries for personal consumption on religious holidays and family festivities or for fear of the animal's perishing and subject to compliance with the sanitary regulations in force.

Art. 36 - The conditions of slaughtering animals and the rules of hygiene and veterinary sanitary control inside slaughterhouses, including for poultry and small animals, must be respected. These conditions and rules are set by joint order of the ministers in charge of local government, agriculture, environment, and public health. The slaughter of females animals for meat production is prohibited except in the cases and conditions fixed by order of the minister in charge of agriculture.

Section II - Meats and Their Transport

Art.37- The creation of establishments for processing, processing and storing meat and offal is subject to sanitary conditions laid down by order⁴⁸. Caterers, processors and stockholders of meat and offal must comply with sanitary conditions during processing, processing and storage operations.

Art.38- The trade of the following meats for the purposes of human consumption is forbidden:

- 1- from corpses,
- 2- from animals with regulated diseases,
- 3- containing microbe levels that do not comply with the regulations in force,
- 4- with an abnormal color or taste or containing impurities,
- 5- from animals whose diet contains products for prohibited use in feed or containing residues of medicinal products used for the treatment of animals.

Art. 39- Meat on display must include a health seal that proves the safety of the product. The use of this seal implies the responsibility of the concerned party. Meat not bearing the stamp referred to above is considered to have been illegally slaughtered. The form and content of the health stamp and the categories of meat are fixed by order⁴⁹ of the minister in charge of agriculture. Merchants must ensure that the meat they display for sale includes a health stamp and proves, at any request, their genre and origin.

Art.40- The transport of meat and offal, other than that of animals for which slaughter and trade is permitted, is prohibited. The transport is carried out according to a book of specifications approved by joint order⁵⁰ of the ministers in charge of the interior, agriculture, and public health. This book sets, in particular, the equipment of which the means of transport of meat must be built and the sanitary conditions to fulfill.

Chapter III: Production and Marketing of Fresh Milk

⁴⁷ [Decree n° 2010-360 dated 1st March 2010](#), approving the directing plan of slaughterhouses

⁴⁸ [Order of the Minister of Agriculture dated 4 January 2013](#), fixing the sanitary conditions for the creation of establishments of processing, transformation and stocking of meat and offal

⁴⁹ [Order of the Minister of Agriculture and Water Resources of 1 August 2006](#) laying down the form and content of the health stamp and the categories of meat concerned

⁵⁰ [Order of the Minister of Agriculture and Water Resources, the Minister of the Interior and Local Development and the Minister of Public Health dated 29 November 2008](#), approving the specifications fixing the equipment and the health conditions which shall be provided in the means of transport of meat and offal

Art. 41- Subject to current trade legislation, producers of fresh milk and its derivatives must meet the Tunisian standards required in this area. The quality of fresh milk is taken into consideration when determining its price at the stages of production, collection and processing.

Art.42- Specialized laboratories assure the analysis of the conformity of fresh milk with the standards envisaged in article 41 of this law and the absence of the elements envisaged in its articles 43 and 44. These laboratories are created according to a book of specifications approved by order⁵¹ of the minister in charge of agriculture. In accordance with the legislation in force, the list of accredited reference laboratories is set by Order⁵² of the minister in charge of agriculture.

Art. 43. - Fresh milk must meet the sanitary conditions laid down by joint decree⁵³ of the ministers in charge of agriculture and public health.

Art. 44. - Subject to the legislation in force, it is prohibited to present the following milk under the name of fresh milk:

- 1- milk unfit for consumption and provided for in article 43 of this law,
- 2- milk of any kind and mixed without indication,
- 3- milk from which liquids or products of any kind have been added to it before its transformation,
- 4- milk from which any of its constituents has been removed before processing.

Art.45 - Fresh milk collection and transport centers are created in accordance with a book of specifications and a master plan approved by order^{54,55,56,57,58,59} of the minister in charge of agriculture. Fresh milk is transported in accordance with a book of specifications approved by joint order⁶⁰ of the ministers in charge of agriculture, interior, public health and trade. Sanitary and technical conditions must be respected when transporting fresh milk.

Title VI: Recognition of Crimes and Sanctions

Chapter I: Recognition of Crimes

Art.46- The crimes provided for by this law are recorded in the minutes drawn up by the judicial police officers provided for in Article 10 of the Code of Criminal Procedure, by the agents of the competent authority, by the agents of the sworn hygiene

⁵¹ [Order of the Minister of Agriculture and Water Resources dated 11 June 2007](#), approving the specifications relating to the establishment of laboratories specialized in analyzing fresh milk to check its conformity with the Tunisian standards in force in this field

⁵² [Order of the Minister of Agriculture and the Environment dated 10 October 2011](#), establishing the list of accredited reference laboratories to carry out analyzes of fresh milk.

⁵³ [Order of the Minister of Industry, Energy and Small and Medium-sized Enterprises of 23 August 2006](#), approving the Tunisian standards for raw milk for processing and fermented milk.

⁵⁴ [Order of the Minister of Agriculture and Water Resources, dated 12 March 2008](#), approving the guide program of the centers of milk collection and its transportation

⁵⁵ [Order of the Minister of Agriculture and Water Resources, dated 21 October 2006](#), approving the specifications for the establishment of the centers for the collection and transport of milk

⁵⁶ [Order of the Minister of Agriculture and Environment dated 23 June 2011](#), approving the specifications relating to the creation of the centers of collection and transport of fresh milk

⁵⁷ [Order of the of Agriculture dated 2 August 2013](#), approving the master plan of the centers of collection and transport of fresh milk

⁵⁸ [Order of the Minister of Agriculture dated August 2, 2013](#), approving the management plan for fresh milk collection and transportation centers

⁵⁹ [Order of the Minister of Agriculture, Water Resources and Fishery dated 29 July 2015](#), completing the master plan of the centers of collection and transport of fresh milk approved by the order dated 2 August 2013

⁶⁰ [Joint order of the Minister of Agriculture and Water Resources, the Minister of the Interior and Local Development, the Minister of Public Health and the Minister of Trade and Handicrafts dated 5 January 2009](#), approving the specifications, fixing the conditions of the fresh milk transport

for this purpose and by the agents of the economic control. The agents of the competent authority are designated from among the agents specializing in animal health or zoo technics and belonging to categories (A) and (B).

Art.47- All the minutes drawn up and signed by the agents referred to in Article 46 of this law shall be transmitted to the public prosecutor at the court with territorial jurisdiction. The public prosecutor sends a copy of these minutes to the competent departments of the ministry in charge of agriculture to present their requests and conclude, possibly, the transaction.

Chapter II: Sanctions

Art.48- Notwithstanding the penalties provided for by the [Decree](#) of October 10, 1919 on the repression of fraud in the trade of goods and food products or agricultural and natural products, by the [Law No. 91-44](#) of July 1, 1991 relative to the organization of the commercial distribution^{61,62,63}, as amended and supplemented by [Law No. 94-38](#) of February 24, 1994 and [Law No. 92-117](#) of December 7, 1992 on the protection of the consumer, is punishable:

- any contravention of the provisions of Articles 13 (paragraph 4 and 5), 17 (paragraph 1), 22 (paragraph 1) and 32 (paragraphs 1 and 2) of this law with a fine of 100 to 500 dinars.
- any contravention of the provisions of Articles 5 (paragraph 2), 35, 36 (paragraphs 1 and 3), 38 (4), 40 and 43 of this law with a fine ranging from 200 to 1000 dinars.
- any contravention of Articles 6 (paragraph 1), 7 (paragraph 2), 8 (paragraph 2), 14 (paragraph 3), 16 (paragraph 2), 28 (1 and 3), 37 (paragraph 2), 41 (paragraph 1), 44 and 45 (paragraph 3) of this law with a fine ranging from 1000 to 10,000 dinars.
- any contravention of Articles 15 (paragraph 1), 18 (paragraph 2), 28 (2, 4 and 5), 38 (1, 2, 3 and 5) and 39 (paragraphs 1, 2 and 4) of the this law of imprisonment from 16 days to three months and a fine ranging from 10,000 to 20,000 dinars or one of only two penalties.

Art.49- In case of repetition, the penalties provided for in article 48 of this law are doubled.

Art.50- The agents referred to in Article 46 of this Law shall seize animal semen, feeds containing unauthorized additives and animal products not satisfying the conditions laid down in this Law and subject to an offence. The competent court hearing the case orders their destruction. Subject to the right of the damaged third party to claim damages, in case of urgency and where such semen, food and animal products constitute a danger, the president of the court of first instance or the cantonal judge may, each within the limits of his powers and at the request of the minister in charge of agriculture, order their destruction.

Chapter III: The Transaction

Art.51- The minister in charge of agriculture can conclude, before final judgment, a transaction concerning the crimes committed against the provisions of this law. The transaction after application of its provisions, extinguishes the public action. The transaction is made against payment of a sum fixed by order⁶⁴ of the minister in charge of agriculture.

Art.52- The transaction cannot be concluded in the cases provided for by Articles 6 (paragraph 1), 14 (paragraph 3), 15 (paragraph 1), 18 (paragraph 2), 28, 36 (paragraph 1), 37 (paragraph 2), 38, 39 (paragraphs 1 and 4), 43 and 44 of this law.

⁶¹ The [Law No. 91-44](#) of July 1, 1991 relating to the organization of commercial distribution and the [Law No. 94-38](#) of February 24, 1994 are abrogated by the [Law No. 2009- 69](#) of August 12, 2009 relative to commercial distribution.

⁶² [Order of the Minister of Trade and Handicrafts dated 21 January 2009](#), approving the specifications organizing the exercise of trade of distribution of animal feed

⁶³ [Decree n° 2013-1293 dated 27 February 2013](#), relating to the organization and control of the wheat bran distribution

⁶⁴ [Order of the Minister of Agriculture, Water Resources and Fishing dated 6 January 2011](#), fixing the sum to be paid in counterpart of the transaction about the crimes committed against the provisions of law n° 2005-95 dated 18 October 2005, relating to the breeding and animal products

Title VII: Miscellaneous Provisions

Art.53- For specific phenomena having a direct impact on the animal husbandry sector, financial and in-kind incentives may be granted from the state budget to support fodder, the collection and storage of products and the protection of animal health. The procedures for granting these incentives are set by decree.

Art.54 - The identification of animals and their registration in the books provided for in this law shall be subject to a fee the rate and use of which shall be fixed by joint order⁶⁵ of the ministers in charge of agriculture and finance.

Art.55 - All previous and contrary provisions to the present law are repealed, in particular:

- [Law No 64-49](#) of December 24th, 1964, relating to the control of the production, the treatment and the trade of the milk.
- [Law No 66-64](#) of 26 July 1966 regulating the slaughter of slaughter animals, the movement and marketing of their meat and offal, as amended by [Law No 71-13](#) of 13 April 1971 and by [Law No 87-75](#) of 26 November 1987.
- [Law No 84-27](#) of 11 May 1984 on animal diseases deemed to be contagious.
- However, their implementing regulations^{66,67,68,69,70,71,72,73,74} remain in force until they are replaced by the implementing texts provided for by this Law.

⁶⁵ [Joint order of the Minister of Agriculture, Water Resources and Fishing and the Minister of Finance dated 24 June 2010](#), fixing the tax rate of the identification of the animals and their registration in the identification registers as well as its using methods

⁶⁶ [Order of the Minister of Agriculture of 12 January 2000](#), laying down the specific sanitary measures to be taken for the control of transmissible spongiform encephalopathies in ruminants.

⁶⁷ [Order of the Minister of Agriculture of 13 April 2000](#) on the approval of breeding establishments and breeding establishments for ostriches and emus

⁶⁸ [Order of the Minister of Agriculture of 8 May 2002](#) laying down the specific health measures to be taken for the surveillance and control of avian salmonellosis disease caused by the bacterium *Salmonella pullorum gallinarum*

⁶⁹ [Order of the Minister of Agriculture, Environment, and Water Resources of 25 May 2004](#) fixing the nomenclature of animal diseases considered contagious and enacting the general sanitary measures common to these diseases

⁷⁰ [Order of the Minister of Agriculture, Environment, and Water Resources of 28 July 2004](#) laying down the procedures for granting the health

⁷¹ [Joint Order of the Ministers of Agriculture and Water Resources and Finance of 21 February 2005](#) fixing the amount of fees for veterinary surgeons with a health mandate and the procedures for allocating them

⁷² [Decree of the Ministry of Public Health of 19 December 2005](#) establishing the National Observatory for New and Emerging Diseases and setting out its administrative and financial organization and the modalities of its operation

⁷³ [Decree n° 2013-2524 dated 10 June 2013](#), fixing the remuneration regime of the general supervisors belonging to the Ministry of Education

⁷⁴ [Government Decree No. 2017-1199 of October 30, 2017](#), setting the compensation scheme for the staff of the supervisors general under the Ministry of Agriculture, Water Resources and Fisheries